

From: [Rebecca Norrod](#)
To: [Secretary](#)
Subject: Docket No. 20-15, Comments on PVO Financial Responsibility Rulemaking regarding Cruise thru History
Date: Thursday, October 21, 2021 10:05:47 PM
Attachments: [Terms_and_Conditions_51119 \(highlighted\).pdf](#)

Thank you for allowing me to contribute to this discussion with regard to Glenn Beck's "Cruise thru History" operated by CruiseBuilder.com and VacationBuilder.com (4700 West Daybreak Parkway, Suite 150, South Jordan, UT 84009) through Costa Cruises, a wholly-owned subsidiary of Carnival Corporation.

My friend and I each paid \$5,545.00 for the cruise in full, July, 2019, scheduled for departure in the Spring of 2020. Due to the pandemic, the cruise was postponed twice and then, on September 21, 2021, cancelled altogether.

At the outbreak of the pandemic, you can see here that Carnival Cruises was refunding passenger payments: *May 18, 2020: [Expecting a refund for a canceled cruise? Here's how long it could take \(thepointsguy.com\)](#)*

"Carnival, for instance, has been sending cash refunds for all taxes, fees and port expenses that customers paid for cruises, even when the customer chooses the credit option. The result is that every one of the more than 1 million [Carnival customers](#) who had a cruise canceled are receiving some sort of refund that needs to be processed."

However, my friend and I have requested refunds for our "Cruise thru History" to no avail. CruiseBuilder.com/VacationBuilder.com and Costa Cruises/Carnival Corporation have had our money totaling \$11,090.00 for over two (2) years with no remuneration/interest/goods or services rendered in exchange.

They claim that their contracts with non-American companies for our destinations in Italy/Greece/Croatia/Israel do not allow for refunds. They further said "We're lucky to keep these relationships alive and have them accommodate us for a date in 2022 or 2023!" That makes no business sense! What reputable business would sign such a contract? Surely they have refund clauses with these foreign vendors or Carnival wouldn't have refunded passengers in early 2020, as noted above. Furthermore, those foreign vendors need tourists as much as tourists need them, so it's in their best interests to have a mutually-beneficial contract with these tour companies. This is a red-herring to divert attention from CruiseBuilder.com/VacationBuilder.com and Costa Cruises/Carnival Corporation continuing to hold our payments hostage for over two (2) years!

You can see in the (attached) CruiseBuilder.com's Terms and Conditions dated May 11, 2019, that Paragraphs 19 and 35 stipulate they will refund if they cancel and will try to work out a resolution with their passengers.

As a passenger who is doing everything in my power to get a refund after the cruise was canceled, I ask that these PVOs and other entities involved in selling cruise packages be held accountable. It is unconscionable how much money these corporations have taken in and yet they refuse to give a refund. I have a contract that says I am entitled only to a refund. That's all I want, but the

corporations involved are only offering cruise credits.

I am not a wealthy corporation that can use a Ponzi scheme to keep everything afloat. I am a regular hard-working person who saved and planned for a special event – and the cruise was super-expensive. I am left with the option of arbitration/mediation to get a portion of my money back, having received nothing in exchange for my hard-earned dollars.

And I know there are hundreds, if not thousands, of other individuals in the same boat who also do not have deep pockets. Please do the right thing and make this decision retroactive for those of us who got the shaft because of the pandemic.

Also, would you kindly send me FMC Form-32 (8/2019) **Federal Maritime Commission Dispute Services Request – Cruise** so that I can file it for the record, please?

Thank you.

Rebecca Norrod